(3) & (4)

IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Amalgamation*

CA(CAA)/60(CHE)2021

SHEER PROMOTERS PRIVATE LIMITED
CIN NO: U45400TN2012PTC088998
No.1, Shyam Court, No.19/16,
Judge Jambulingam Street,
Dr.Radhakrishnan Salai,
Mylapore, Chennai- 600 004

... Applicant / Transferor Company

Along with

CA(CAA)/51(CHE)2021

SAN MEDIA PRIVATE LIMITED
CIN NO: U22219TN1996PTC036973
No.4, Chamiers Road,
Nandanam, Chennai – 600 035

... Applicant/ Transferee Company

Order Pronounced on ***25th May 2022***

CORAM

R. SUCHARITHA, MEMBER (JUDICIAL)
SAMEER KAKAR, MEMBER (TECHNICAL)

For Applicant(s): *Ramaswamy Meyappan, Advocate*

ORDER

Per: **R.SUCHARITHA, MEMBER (JUDICIAL)**

This is an application filed by the Applicant Companies, namely **SHEER PROMOTERS PRIVATE LIMITED** (for brevity "Transferor Company") and **SAN MEDIA PRIVATE LIMITED** (for brevity "Transferee Company") under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed by the **SHEER PROMOTERS PRIVATE LIMITED** (for brevity "Transferor Company") and **SAN MEDIA PRIVATE LIMITED** (for brevity "Transferee Company") with its Shareholders. The said Scheme is also annexed to the CA/CAA/60(CHE) 2021.

2. The Applicant Companies in this Company Application has sought for the dispensation of the meeting of the Equity Shareholders and Unsecured Creditors of the Transferor Company and dispensation of the meeting of the Equity Shareholders of the Transferee Company.

3. From the certificate of incorporation filed, it is evident that the Transferor Company is a Private limited company incorporated under the provisions of Companies Act, 1956 on 14.12.2012. The Authorized Share Capital of the Transferor Company is ₹7,00,00,000 (Rupees Seven Crore Only) consisting of 70,00,000 (Seventy Lakhs

only) Equity Shares of Rs.10/- each. The Issued, Subscribed and Paid-up Capital of the Transferor Company is ₹6,77,38,270 (Rupees Six Crores Seventy Seven Lakhs Thirty Eight Thousand Two Hundred and Seventy Only) consisting of 67,73,827 (Sixty Seven Lakhs Seventy Three Thousand Eight Hundred and Twenty Seven only) Equity Shares of Rs.10/- each.

4. From the certificate of incorporation filed, it is evident that the Transferee Company is a Private limited company incorporated under the provisions of Companies Act, 1956 on 21.11.1996. The Authorized Share Capital of the Transferee Company is ₹25,00,00,000 (Rupees Twenty Five Crores Only) consisting of 2,50,00,000 (Two Crore and fifty Lakhs Only) Equity Shares of Rs.10/- each. The Issued, Subscribed and Paid-up Capital of the Transferee Company is ₹16,60,00,000/- (Rupees Sixteen Crores Sixty Lakh Only) consisting of 1,66,00,000 (One Crore and Sixty Six Lakhs only) Equity Shares of Rs.10/- each.

5. An affidavit in support of the above application is sworn for and behalf of the applicant Companies has been filed by Mr. Ramesh Radhakrishnan in the capacity of Authorised Signatory for the Transferor Company and by one Mr. Rajasankar Arjundurai in the capacity of Authorised Signatory for the Transferee Company along

with the application and it is also represented that the Registered office of the Transferor Company is situated at No.1, Shyam Court, No.19/16, Judge Jambulingam Street, Dr.Radhakrishnan Salai, Mylapore, Chennai – 600 004 the Registered office of the Transferee Company is situated at No.4, Chamiers Road, Nandanam, Chennai-600 035 within the territorial jurisdiction of the Bench of this Tribunal and falling within the purview of Registrar of Companies, Chennai.

6. SHEER PROMOTERS PRIVATE LIMITED (TRANSFEROR COMPANY)

(i) There are 3 (Three) Equity Shareholders and list of shareholders to this effect is placed at page 102 and consent affidavits given by all is placed as page no.103 to 108 of the typed set filed with the application and sought for dispensation with holding of meeting.

(ii) There is NIL Secured Creditor and the certificate issued by the Chartered Accountants to this effect is placed at page 109 of the typed set filed with the application. Hence the necessity of convening, holding and conducting the meeting does not arise.

(iii) There are 2 (Two) Unsecured Creditors and the certificate issued by the Chartered Accountants to this effect is placed at page 109 of the typed set filed with the application and consent by way of Affidavit given by the both the unsecured Creditors is placed at pages 110

to 113 of the typed set filed with the application and sought for dispensation with holding of meeting.

7. SAN MEDIA PRIVATE LIMITED (TRANSFEREE COMPANY)

(i) There are 9 (Nine) Equity Shareholders and the list of shareholders to this effect is placed at page 157 and consent by way of Affidavit given by the 5 (Five) Equity Shareholders Constituting 99.99% of the total value of credit have been obtained are placed at pages 158 to 167 of the typed set filed with the application and sought for dispensation with holding of meeting.

(ii) There are NIL Secured Creditor and the certificate issued by the Chartered Accountants to this effect is placed at page 168 of the typed set filed with the application. Hence the necessity of convening, holding and conducting the meeting does not arise.

(iii) There are Nil Unsecured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at page 168 of the typed set filed along with the Application. Hence the necessity of convening, holding and conducting the meeting does not arise.

8. We have perused the application and the connected documents / papers filed therewith including the Scheme contemplated by the Applicant companies.

9. The Applicant Companies has filed its Memorandum and Articles of Association *inter alia* delineating its object clauses as well as their last available Audited Annual Accounts for the year ended 31.03.2020.

10. The Board of Directors of the Applicant Companies vide meeting held on 18th January 2021 has unanimously approved the proposed Scheme as contemplated above and copies of resolutions passed thereon have been placed on record by the applicant companies.

11. The Appointed date as specified in the Scheme Shall be 01.04.2020.

12. The Statutory Auditors of the Transferee Company have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013. The Certificate of the Statutory Auditors issued in this regard is placed at pages 203 of the typed set filed along with the Application.

13. Taking into consideration the application filed by the Applicant Company and the documents filed therewith as well as the position of law, this Tribunal propose to issue the following directions : -

A. IN RELATION TO THE TRANSFEROR COMPANY:

(i) **With respect to Equity shareholders:**

Since it is represented by the Transferor Company that there are 3 Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening and holding the meeting is *dispensed with.*

(ii) **With respect to Secured Creditors:**

Since it is represented by the Transferor Company that there are NIL Secured Creditor in the Company, hence the necessity of convening, holding and conducting a meeting does not arise.

(iii) **With respect to Unsecured Creditors:**

Since it is represented by the Transferor Company that there are two Unsecured Creditors in the Company whose consents by way of Affidavits have been obtained from both and are placed on record, the necessity of convening, holding and conducting the meeting is *dispensed with.*

B. IN RELATION TO THE TRANSFEREE COMPANY:

(i) **With respect to Equity shareholders:**

Since it is represented by the Transferee Company that there are 9 Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from five Equity Shareholders Constituting 99.99% of the total value of credit are placed on record, the necessity of convening, holding and conducting a meeting is *dispensed with.*

(ii) **With respect to Secured Creditors:**

Since it is represented by the Transferee Company that there are NIL Secured Creditor in the Company, hence the necessity of convening, holding and conducting the meeting does not arise.

(iii) **With respect to Unsecured Creditors:**

Since it is represented by the Transferee Company that there are NIL Unsecured Creditor in the Company, hence the necessity of convening, holding and conducting a meeting does not arise.

14. The Applicant Companies shall submit the Company Petition(s) within 14 days from the date of receipt of this order. Accordingly, the Application stands **allowed**.

-Sd-
SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-
R. SUCHARITHA
MEMBER (JUDICIAL)

Sriram Ananth.V